

**BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT PUNE, MAHARASHTRA**

Consumer Complaint No.: CC/166/2024

Date of Filing: 11.06.2024

Date of Order: 05.11.2025

Date of Hearing: 22.10.2025

CORAM:

Sri. D. Patil-Kulkarni, B.Sc., LL.M., President

Smt. Manisha Joshi, M.A., LL.B., Member

Aniket Bhosale, S/o Vinayak Bhosale

Flat 12, Vasant Vihar Society, Karve Nagar,

Pune - 411052, Maharashtra.

...Complainant

Versus

1. M/s. QuickEats Online Services Private Limited

9th Floor, Knowledge City Tower B,

Hinjewadi Phase 2, Pune - 411057, Maharashtra.

Represented by its Authorized Signatory.

2. M/s. Mehfil Restaurant

Shop No. 4, Ganesh Plaza, F. C. Road,

Pune - 411004, Maharashtra.

(Restaurant partner on QuickEats platform)

...Opposite Parties

ORDER

Per Smt. Manisha Joshi, Member:

1. Brief Facts of the Case

On 02.05.2024 at 8:42 PM, the complainant placed an order through the First Opposite Party's mobile application for various food items from the Second Opposite Party (Mehfil Restaurant) totalling Rs. 2,847/- inclusive of delivery fee, taxes, and platform fee. Order ID: QE-7820041523.

The order was scheduled for delivery within 45 minutes. The actual delivery was made at 11:08 PM, after a delay of approximately one hour and forty minutes beyond the promised time.

Upon receipt and opening of the order, the complainant discovered that one of the food items (Mutton Biryani — full plate) contained a foreign object, specifically a small metallic shard approximately 1 cm in length, which the complainant nearly ingested. Photographs of the foreign object were taken immediately and an incident report was lodged with both Opposite Parties.

The complainant raised a refund request through the First Opposite Party's application along with photographic evidence of the foreign object. A refund of only Rs. 489/- (corresponding to the price of the affected dish) was offered, which the complainant rejected as inadequate.

2. Contentions of the Complainant

The presence of a metallic foreign object in food sold by the Second Opposite Party and delivered through the First Opposite Party's platform poses a serious health hazard and constitutes a fundamental breach of the duty of care owed by both Opposite Parties under the Consumer Protection Act, 2019 and the Food Safety and Standards Act, 2006.

The First Opposite Party, as an e-commerce entity facilitating sale of food, is bound by the obligations under the Consumer Protection (E-Commerce) Rules, 2020, and cannot escape liability by characterizing itself as a mere intermediary, particularly when its quality control representations form a key marketing claim.

Beyond the foreign object incident, the delay of nearly two hours in delivery without any communication or compensation independently constitutes deficiency in service.

3. Reply of the Opposite Parties

The First Opposite Party, in its written version, has reiterated its intermediary status and the standard refund offer of Rs. 489/-. It has not offered any explanation for the delay of nearly two hours and has not produced any documentation regarding its quality control framework for partner restaurants.

The Second Opposite Party did not enter appearance and was set ex parte vide order dated 18.08.2024.

4. Issues for Determination

- (a) Whether the presence of a metallic foreign object in the delivered food constitutes deficiency in service under Section 2(11) of the Consumer Protection Act, 2019?
- (b) Whether the inordinate delay in delivery without communication independently constitutes deficiency in service?
- (c) Whether the First Opposite Party can avoid liability by invoking intermediary status?
- (d) What is the appropriate compensation due to the complainant?

5. Findings and Reasoning

The photographic evidence (Ex. C-1 to C-3) clearly establishes the presence of a metallic foreign object in the delivered food. This is not a question of taste or quality preference; it is a serious health and safety violation.

Both Opposite Parties bear responsibility. The Second Opposite Party, as the actual preparer of the food, has primary responsibility for hygiene and safety. The First Opposite Party, as the platform facilitating the transaction and marketing the food to consumers, cannot disavow all responsibility, particularly when its consumer-facing communications emphasize quality assurance.

The delay of nearly two hours without any communication, in a service that is explicitly marketed on the basis of speed, independently constitutes deficiency in service. The First Opposite Party has not offered any explanation, much less any documented force majeure or unavoidable circumstance.

The token refund of Rs. 489/- offered by the Opposite Parties is wholly inadequate given the health risk and the harassment caused. A consumer who narrowly avoids ingesting a metallic object cannot be told that the price of the dish is full and final compensation.

6. Order

The Commission finds both Opposite Parties jointly and severally liable for deficiency in service.

In view of the foregoing, the Commission hereby directs:

(a) The Opposite Parties shall jointly and severally refund the entire order value of Rs. 2,847/- (Rupees Two Thousand Eight Hundred and Forty-Seven only) to the complainant within 15 days.

(b) The Opposite Parties shall jointly and severally pay compensation of Rs. 25,000/- (Rupees Twenty-Five Thousand only) to the complainant for the health risk, mental harassment, and deficient service.

(c) The First Opposite Party is directed to put in place a formal quality assurance protocol for its partner restaurants and to file an undertaking before this Commission within 60 days describing such protocol.

(d) The matter shall stand referred to the Food Safety and Standards Authority of India, Pune Office, for such further action as may be warranted against the Second Opposite Party.

The complaint is accordingly **allowed** with the above directions. Compliance to be reported within the time stipulated. Costs of Rs. 4,000/- are also awarded to the complainant.

(Sri. D. Patil-Kulkarni)

(Smt. Manisha Joshi)

Place: Pune

Date: 05.11.2025

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